

		law established in <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724 and <i>Ziegler v. Nickel</i> (1998) 64 Cal.App. 4th 545, 547-549: Corporations, LLCs, and Trusts need to be represented by an attorney in civil proceedings. The Court has read and considered the Motion to Substitute In As Real Party in Interest and Dismiss Action (ROA 18) and Notice of Related Case (ROA 34). The Court has read and considered the Request for Judicial Notice filed by Real Party in Interest for Richard Huntington, Trustee of the 2014 Mehdi Rahumi Kashani Fard Trust. The Court takes Judicial Notice of Exhibit A-S. Specifically, as to Exhibit R, in which Judge Susel Carrillo-Orellana on 3/30/2026 made findings as to the premises property located at 31053 Avenida de la Vista, San Juan Capistrano, CA 92675. Judge Carrillo-Orellana found that Farnaz Rahimi Kashani was not the proper trustee when filing the unlawful detainer petition for the premises property at 31053 Avenida de la Vista, San Juan Capistrano, CA 92675; Richard Huntington was the proper trustee of the premises. The Court finds 31053 Avenida de la Vista, San Juan Capistrano, CA 92675 is the same property as the one indicated in Exhibit R. Res Judicata applies to this matter as a Court has already determined that Farnaz Rahimi Kashani does not have the right to file an unlawful detainer action regarding this property as Farnaz Rahimi Kashani is not the owner of the property and not the trustee of the property. Farnaz Rahimi Kashani had no legal authority to file this unlawful detainer action regarding the premises at the address; therefore, the case is dismissed with prejudice.
14	30-2015-00803737 Ocean Breeze Villas vs. Florida	The Court has read and considered the Defendant's Motion to Vacate Renewal of Judgment (ROA 51) and Declaration in Support of the Motion (ROA 52). The Court takes Judicial Notice of the Application for and Renewal of Judgment (ROA 35), Proof of Service by Mail (ROA 41), Memorandum of Costs After Judgment (ROA 43), Writ of Execution (ROA 44), Writ of Possession Returned – Wholly Satisfied (ROA 22), Writ (07/11/2018 Issued) (ROA 32), and Declaration of Address Verification (ROA 47). California Code of Civil Procedure § 683.170(a), states “The renewal of a judgment pursuant to this article may be vacated on any ground that would be a defense to an action on the judgment, including the ground that the amount of the renewed judgment as entered pursuant to this article is incorrect, and shall be vacated if the application for renewal was filed within five years from the time the judgment was previously renewed under this article.” California Code of Civil Procedure §683.160(a) states, “The judgment creditor shall serve a notice of renewal of the judgment on the judgment debtor. Service shall be made personally or by first-class mail and proof of service shall be filed with the court clerk. The notice shall be in a form prescribed by the

		Judicial Council and shall inform the judgment debtor that the judgment debtor has 60 days within which to make a motion to vacate or modify the renewal.” The original address of the premises subject to the unlawful detainer proceedings was 6401 Warner Ave. #525, Huntington Beach, CA 92647, based on the Writ of Possession (ROA 22), which was filed on 9/30/2015. The Writ that was issued in July of 2018 as to the Defendants at an address of 7701 Warner Ave. Apt. L174, Huntington Beach, CA 92647 (ROA 32). The Proof of Service by Mail (ROA 41) serves both Defendants at 6200 Edinger Ave., Apt. 832, Huntington Beach, CA 92647 on 1/7/2026 with the “Notice of Renewal of Judgment, Application for Renewal of Judgment”, although the Application for and Renewal of Judgment (ROA 35) was filed with the Court on 10/7/2025. ROA 42 shows two different addresses for service, including 7281 La Mancha Cir, Apt. C, Huntington Beach, CA 92647, signed 2/6/2026, less than a month from the Proof of Service by Mail (ROA 41). Defendant Anna Grabowska provided documentation that she has resided at the same location, 7281 La Mancha Circle Apt. C, Huntington Beach, CA 92648, since June 2020. Plaintiff failed to timely serve on the Defendant the Application for Renewal of Judgment at the correct address for the Defendant. Additionally, there is no evidence lodged with the Court showing that the Plaintiff complied with the requirement to notify the judgment debtor that the judgment debtor has 60 days within which to move to vacate or modify the renewal. The Court VACATES the Renewal of Judgment and QUASHES the Writ of Execution issued on 4/22/2026. The Court Clerk is to notify the Orange County Sheriff’s Department that the Writ of Execution issued on 4/22/2026 is QUASHED. The Court Clerk is to provide notice of the Court’s ruling.
15	30-2026-01555485 Phan vs. Lu	The Court has read and considered the Defendant’s Motion to Set Aside Default Judgment (ROA 34) and Supplement Declaration and Supplemental Exhibits in Support of Motion (ROA 41). The Court SETS ASIDE the default judgment entered on 5/18/2026. The Court finds the Defendant met its burden under California Code of Civil Procedure section 473(b). The Court QUASHES the Writ of Possession and CANCELS the lockout. The Court Clerk is to notify the Orange County Sheriff’s Department that the Writ of Possession is Quashed and the Lockout canceled. The Defendant is ordered to file an Answer today (6/12/26) no later than 4 PM at the Clerk’s office. The Court Clerk is to notify the parties of the Court’s ruling.